Oregon City: Preliminary Public-Records Findings

Utility administration, enforcement discretion, disability access, and potential municipal-liability evidence

Research date: October 10, 2026

Requested period: October 10, 2023–October 10, 2026

Prepared for a self-represented litigant. Research memorandum—not a legal opinion, authenticated exhibit, or finding of misconduct.

1. Executive assessment

The most useful discovery is the City's own February 2026 review of utility administration. Its Public Works memorandum states that the municipal code supplies no formal appeal process for water or sewer billing, describes reliance on interpretation and past practice, and identifies inconsistent treatment of customers. The accompanying matrix also identifies an internal billing-policy appeal provision. Taken together, these documents support investigating a gap between codified procedures, internal practices, and the notice actually given to customers—not an unqualified assertion that no review mechanism existed. [S1, packet pp. 20–27]

Three additional lines of evidence deserve attention:

- **Available flexibility:** The same memorandum describes payment arrangements ordinarily not exceeding 180 days. June 2025 draft minutes describe individualized enforcement decisions, permission for some encroachments to remain, and consideration of a fee reduction. These are leads for investigating whether flexibility was available but denied to the plaintiffs. They are not yet legally adequate comparators. [S1, p. 26; S2, pp. 173–175]
- **Institutional knowledge of danger and disability:** A July 2024 packet includes a disability-rights proclamation and a hazard plan identifying extreme heat as a top-tier threat. These are contextual knowledge documents, not proof that the particular defendants knew the plaintiffs' medical circumstances. [S3, pp. 3, 16, 28, 48–49]
- **ADA policy versus implementation:** The current City grievance procedure applies to public programs and services, promises reasonable modifications, and assigns a final grievance decision to the City Manager. The August 2026 right-of-way plan, however, explicitly excludes other City facilities, programs, and services from its evaluation. Historical versions and implementation records are essential. [S2, pp. 27–28, 42, 57; S5]

Bottom line: The reviewed record provides concrete support for investigating procedural inconsistency, discretionary relief, complaint-driven enforcement, and implementation gaps. It does not independently establish a coordinated plan to acquire the plaintiffs' property, retaliatory motive, a widespread unconstitutional displacement custom, or the disputed account transactions described in the complaint.

This is a **targeted preliminary review**, not a completed census of three years of meetings. Four official packets totaling 663 PDF pages were downloaded and searched, with focused review of the relevant portions. No late-2023 document received substantive verification in this pass. Search and archive limitations are described below. Do not represent this report as an exhaustive three-year audit.

2. Method and evidentiary classifications

The user-supplied attachment contains the initial complaint, requested emergency relief, a September 14, 2026 screening order, and an amended complaint dated October 5, 2026. Those materials were used to define research questions. Their factual allegations were not treated as independently established. The federal docket, underlying state judgments, recordings, medical records, and original correspondence were not independently retrieved.

Research directly operated Oregon City's public Laserfiche E-Vault and CivicClerk meeting portal. Searches included code enforcement, an exact-phrase version of that term, shutoff, Reimbursable, 3-29, Eriksson, and Matheson. Search results were used to locate documents, not treated as evidence of the underlying allegations. Numeric policy searches produced numerous irrelevant matches and were not reliable confirmation of Policy 3-29.

The official packets preserved are:

- May 15, 2024 regular Commission meeting: 282 pages.
- July 17, 2024 regular Commission meeting: 93 pages.
- February 10, 2026 Commission work session: 63 pages.
- August 19, 2026 regular Commission meeting: 225 pages, including June 10, 2025 draft work-session minutes.

PDF references in this report identify **one-based pages in the downloaded full packet**, not an attachment's internal pagination. The May 2024 packet labels its pages simply as Page 1, Page 2, and so on; those correspond to PDF page order. Focused extracts retain the original packet page labels.

Classification:

- **Verified document content:** What an inspected official source says. This does not establish that all statements in it are correct or that a proposed measure was enacted.
- **Potential inference:** A reasoned possibility suggested by the source, expressly qualified.
- **Unverified allegation:** A statement from the user's pleadings not corroborated independently here.
- **Follow-up lead:** A specific record, comparison, or testimony needed to test a proposition.

Agenda packets often contain drafts, unsigned resolutions, proposed contracts, and draft minutes. Obtain signed enactments, approved minutes, and certified copies before relying on adoption or implementation. Search failure, an empty public folder, and a no-responsive-records response are three different things; none automatically proves that a policy never existed.

3. Priority findings

F1. The City publicly identified gaps in codified utility appeal procedures

Source: February 3, 2026 Utility Service Charges Code Consistency Review memorandum, presented February 10; Public Works Director Dayna Webb's accompanying staff report and matrix. [S1, pp. 20–27]

For water and sanitary sewer charges, the memorandum states: “The Code does not establish a formal appeal process.” It contrasts these with pavement-maintenance charges, where an adjustment request has a 30-day submission window and the manager's decision is final. For stormwater exemptions, disputed matters have historically gone to the Commission. The memorandum recognizes uneven access to review, ad hoc decisions, and unclear escalation authority.

Potential relevance: This is the strongest located institutional-policy document for the allegation that disputed charges were enforced without clearly communicated review procedures. It may help identify whether the alleged conduct reflected system design rather than one employee's isolated error.

Important qualification: Page 27 identifies a 30-day appeal provision in the internal Utility Billing Policy and footnotes that some mechanisms absent from the code exist in that policy. The report therefore cannot conclude that there were

no appeals whatsoever. A billing appeal is also not necessarily a pre-termination dispute procedure. Identify which mechanism applied, who could halt disconnection, and whether notices disclosed it.

Obtain next: Every historical Utility Billing Policy version; actual June 2024 shutoff-notice templates; dispute-routing instructions; authority to suspend shutoff; grievance/appeal logs; amendments considered after this presentation. The 2026 review does not, by itself, establish the state of practice in June 2024.

F2. Payment arrangements and reduced rates were recognized administrative programs

Source: Same review, especially packet pp. 25–27. [S1]

The memorandum describes payment arrangements ordinarily not exceeding 180 days, in addition to current bills. It describes an income-based reduced-rate program that halves base charges for water, sewer, stormwater, and pavement maintenance and lowers water-consumption charges by approximately 20%.

Potential relevance: These programs make the decisive question more specific: Why was the plaintiffs' proposed arrangement rejected, what eligibility or prior-default rules applied, and did disputed barrier charges have to be paid before any arrangement was allowed?

Limitation: This establishes the described program as of the memorandum, not an unconditional entitlement or proof that the plaintiffs qualified. A program can lawfully have conditions. Retrieve the 2024 eligibility rules, completed application, decision, and records of comparable applicants before alleging selective denial.

F3. The City acknowledged inconsistent utility administration and reliance on past practice

Source: Staff report and memorandum. [S1, pp. 20–26]

The review identifies materially different collection, lien, assistance, correction, and appeal rules across services billed together. It describes uncertainty and reliance on interpretation or past practice rather than clear code direction. It distinguishes water shutoff authority from less explicit cross-references governing other charges. The memorandum also says storm-drainage code does not authorize a lien.

Potential relevance: Request a charge-by-charge ledger and statutory/policy basis for every amount. A combined bill should not obscure whether water, sewer, stormwater, pavement charges, interest, meter removal, or barrier costs caused or prolonged the disconnection.

Limitation: A staff legal characterization is not a judicial ruling that any particular charge or lien was unauthorized. This source does not mention the plaintiffs, their concrete barrier, or their account. It may reflect an ordinary good-faith effort to improve administration, not bad faith.

F4. Commission minutes document property-specific enforcement flexibility

Source: June 10, 2025 draft work-session minutes, included in the August 19, 2026 packet. [S2, pp. 173–175]

During discussion of McLoughlin Promenade encroachments, the draft minutes record differing outcomes:

- At 123 High Street, a right-of-way permit for a shed was contemplated with consideration of a fee reduction, plus an acknowledgment addressing the Promenade encroachment.
- At 306 Promenade Street, a deck and stairs could remain while other encroachments and parking were to be removed.
- At 406 Promenade Street, a deck, stairs, and parking could remain, while a sign and fence were to be removed.
- At 408 Promenade Street, the recorded consensus was that existing encroachments did not need removal.
- For 515 High Street, the minutes record continued consensus to vacate the portion occupied by a house foundation and allow existing irrigation.
- Other properties received removal directions or no further action.

Potential relevance: This undermines a sweeping factual contention that all enforcement outcomes are automatically mandatory and that elected officials never consider individualized solutions. It identifies specific files for comparator research and shows Commission involvement in enforcement policy.

Limitation: Promenade encroachments are not the same as dangerous-building, vegetation, or sanitation violations. Historical rights, location, safety, ownership, legal authority, and severity may justify different treatment. These records do not establish political connections, favoritism, unlawful animus, or unequal treatment of similarly situated people. The minutes remain labeled draft in the reviewed packet.

Obtain next: Approved minutes and video; acknowledgment/licensing letters; permit and fee records; original complaints; safety assessments; enforcement timelines; grounds for each differing outcome. Compare facts rather than property values or assumed political influence.

F5. Leadership was told about substantial sidewalk costs and gaps in assistance

Source: Same June 10, 2025 draft minutes. [S2, pp. 173–174]

City Attorney Carrie Richter described estimated replacement costs of $700–$1,000 per panel and a grant reimbursing up to $1,500 per affected site when street-tree roots caused damage. The minutes report 67 complaints in the McLoughlin neighborhood between April and mid-May 2025, 60 properties needing repair, 40 not qualifying for that program, and 20 qualifying at least partially. Commissioners discussed additional assistance and directing staff to return with options. The attorney advised against formally suspending enforcement because of increased risk.

Potential relevance: This supports institutional awareness of repair burdens and assistance limitations. It also documents the safety/liability rationale the City may invoke for continuing enforcement.

Limitation: It does not substantiate the complaint's more specific allegation that residents testified they could not afford winter heating. No such testimony was independently located here. It also does not prove a fine-revenue motive or deliberate displacement.

F6. A formal ADA plan describes complaint-driven enforcement and interdepartmental coordination

Source: August 2026 right-of-way transition-plan materials. [S2, pp. 46, 52]

The plan describes sidewalk-hazard enforcement as complaint-driven. It makes the broader assertion that, as of 2025, municipal-code violations other than parking were handled through a complaint-driven process. Code Enforcement initially reviews complaints, Engineering inspects sidewalk hazards, owners receive notice, and unresolved matters return to enforcement, potentially court proceedings and repair-cost recovery or liens.

Potential relevance: Obtain the initiating complaint and complete routing history for each plaintiffs' enforcement episode. If no external complaint exists, determine whether staff referrals, repeat inspections, or self-initiated cases are permitted exceptions. The source supplies a concrete operational framework to test.

Limitation: Complaint-driven does not mean every case must begin with an unrelated resident. The plan describes a 2025 practice in a 2026 document; it cannot conclusively establish the 2024 rule. Coordination and ordinary cost recovery are not themselves unconstitutional.

F7. ADA materials support a policy/implementation inquiry but contradict a blanket claim of no infrastructure

Sources: August 19, 2026 staff report, transition plan, and current ADA Grievance webpage. [S2, pp. 27–28, 42, 57; S5]

The staff report, submitted by Alexandra Troutman and Josh Wheeler, recognizes obligations to evaluate public services, policies, and practices. It explicitly limits this plan to physical barriers in the public right-of-way; other City facilities, programs, and services are outside its evaluation. The plan describes an ADA Coordinator, cross-departmental responsibilities, and a grievance mechanism.

The current webpage allows disability-access complaints about services, activities, programs, and benefits. It offers alternative filing methods, a coordinator response, and an appeal to the City Manager or designee, whose grievance decision is final. It also promises reasonable modifications and says using the grievance procedure is not a prerequisite to other remedies.

Potential relevance: These materials provide a concrete policy benchmark against which the alleged categorical June 23, 2026 denial can be investigated. The current webpage's final-manager decision language is a function-specific authority lead, stronger than simply labeling the manager the chief administrator.

Critical limitations: The page's original publication date and historical wording were not established. Current infrastructure does not prove compliance in 2024, but it prevents treating today's absence of all ADA policy as a verified fact. A right-of-way transition plan does not substitute for service-specific accommodation procedures or prove their absence. The existence and legal effect of the alleged denial letter still require its original text and context.

Obtain next: Webpage version history and CMS timestamps; grievance-policy adoption records; coordinator appointments; training syllabi and attendance; utility/court/code accommodation SOPs; request and denial logs; escalation and appeal records. Do not infer complete failure to train merely from empty public folders.

F8. July 2024 materials document heat-risk awareness and a public disability-rights commitment

Source: July 17, 2024 Commission packet. [S3, pp. 3, 16, 28, 48–49]

The packet includes a Disability Pride Month proclamation recognizing disability discrimination and promoting inclusion. Its natural-hazard materials rank extreme heat second in the local hazard matrix and as a top-tier threat, discuss the 2021 regional heat emergency, and describe Public Works' role in reliable potable-water delivery and public-health protection.

Potential relevance: These contextual documents may help establish that extreme heat and disability access were familiar institutional concerns while the alleged shutoff continued. They can identify the safety policies officials were expected to consult.

Limitation: The packet postdates the alleged June 25 shutoff and early-July barrier placement. It supports awareness during the continuing episode, not necessarily knowledge at the initial act. Proclamations do not demonstrate bad faith, and general hazard awareness does not prove knowledge of the plaintiffs' specific medical risk. Confirm adoption of the hazard update and pair these materials with contemporaneous individual notice.

F9. A 2024 institutional sewer adjustment demonstrates willingness to revise billing rules

Source: May 15, 2024 staff report and proposed Resolution 24-16. [S4, pp. 46–53]

Staff described a longstanding adjustment for a large institutional customer, Clackamas Community College, whose irrigation use otherwise inflated sewer charges. The report refers to incomplete documentation of the historical arrangement and recommends a revised methodology. It estimates approximately $36,900 less annual sewer revenue, comparing prior revenue of $62,528 with projected revenue of $25,657.

Potential relevance: This documents substantial billing flexibility and willingness to correct a charge structure perceived as inequitable. It is a useful narrative contrast to claims that the City can never adjust billing methodology or accommodate unusual circumstances.

Limitation: The customer is not similarly situated to a delinquent residential account. Irrigation not entering the sewer supplies a clear technical rationale; residential sewer charges also use winter consumption. This is not proof of favoritism or a legal entitlement to the same treatment. The report's budget comparison implies a $36,871 difference; $36,900 is its rounded estimate. Obtain the signed resolution before asserting adoption.

F10. WIFIA financing is documented as a funding lead

Source: August 19, 2026 Henrici project staff report. [S2, pp. 80–85]

The report describes the transmission project as part of the City's WIFIA loan and recommends a $9,295,710 construction award. It supports obtaining the actual federal-assistance agreement, assurances, disbursement history, recipient identity, and relevant program coverage for the Rehabilitation Act theory.

Limitation: A project financing reference does not settle all statutory coverage elements or establish federal support for Code Enforcement. Metro regional enhancement money should not be labeled federal assistance without tracing its source. No conclusion about CDBG funding or the alleged code-enforcement allocation was verified here.

4. What the findings do—and do not—supply for Monell

The Ninth Circuit's official model instructions distinguish municipal liability based on policy/custom, acts of a final policymaker, ratification, and failure to train. Each theory requires an underlying rights deprivation and the appropriate causal connection; employment by the City is not enough. [L1–L4]

Policy or custom: F1–F3 provide unusually concrete institutional descriptions. The next evidentiary link is the operative 2024 policy, actual customer notice, and decision path that caused or prolonged the alleged deprivation. Ambiguous code, standing alone, is not proof of a constitutional violation. A widespread unlawful custom requires more than allegations about this one household. [L1]

Final policymaker: The current ADA grievance page identifies final manager review for that particular function. It does not establish final policymaking authority over every billing, shutoff, police, or court decision. The court determines authority under state law, function by function; operational discretion and final policymaking are not interchangeable. Retrieve historical charter/code provisions and delegations. [S5; L2]

Ratification: The located meeting materials do not independently establish that an authorized final policymaker knew and specifically approved the alleged unconstitutional act and its basis. The user's alleged Konkol communication should be tested against the recording or contemporaneous written record. Silence, referral to utility staff, or failure to reverse an employee is not automatically ratification. [L3]

Failure to train or procedural safeguards: F7 identifies what to investigate, not a completed proof. Seek recurring situations, deficient materials, known prior incidents, notice to decision-makers, and a causal link to the plaintiffs' injury. A missing search result or one disputed denial does not independently establish deliberately indifferent training. [L4]

Treat the ADA and Rehabilitation Act claims as their own statutory analyses rather than assuming all their requirements are supplied by a Monell label. This report does not decide the viability of those claims, any immunity, limitations, preclusion, or available damages.

5. Political undercurrent: defensible narratives versus unsupported accusations

Narrative A: Access to discretionary relief may be uneven

Documentary foundation: institutional billing revisions, individualized encroachment outcomes, and acknowledged informal utility administration. The defensible question is who received review, flexibility, or a tailored solution, under what standards, and whether similarly situated disabled residents received comparable consideration. The record does not yet answer it.

Narrative B: Public inclusion commitments may not match service delivery

Documentary foundation: July 2024 proclamation, 2026 ADA plan, and current grievance commitments. Compare these with authenticated denial letters and actual request routing. A policy-to-practice discrepancy is testable; hypocrisy or hostility should not be assumed from the proclamation alone.

Narrative C: Complaint-driven enforcement may create neighborhood-level pressure

Documentary foundation: the formal plan's complaint-based framework and the 2025 neighborhood complaint cluster. Obtain complainant records subject to applicable redactions, geographic concentration, initiation types, violations, deadlines, assistance, and outcomes. Geographic concentration can result from legitimate hazards, an organized complaint campaign, or differential treatment; the current record does not distinguish them.

Narrative D: Revenue and cost recovery may outweigh hardship in some decisions

Documentary foundation: collection/lien pathways and assistance debates. Test the narrative with actual budgets, fee calculations, recovery ratios, write-offs, and decision emails. No reviewed record demonstrates a scheme to generate fines by manufacturing uninhabitability.

Not substantiated here: broker/servicer collusion; check suppression and its motive; political ties of comparator owners; deliberate backdating; coordinated foreclosure predation; the Matheson comparison; municipal retaliation for state rulemaking; an official policy to deny water to force a sale. These remain allegations or leads, not report findings.

6. Priority records request and discovery roadmap

Request records—not explanations or admissions—and ask for existing native electronic files, attachments, relevant metadata, version history, and a record-level explanation of withheld material. A voluntary public-records request and litigation discovery are different processes; this report does not submit either.

Priority 1: The actual shutoff/restoration decision chain

- Work Orders 24-000915 and 25-001106, including full audit trails, authorizations, task completion dates, time entries, equipment, invoices, photographs, and instructions.
- Account ledger with charge types, interest, payment allocation, reversals, adjustments, holds, and all linked predecessor accounts; records linking each charge to authority and cost.
- Management Policy 3-29 and every amendment, effective date, approval, distribution, and relevant implementation instruction.
- Utility Billing Policy versions operative in 2023–2026; shutoff/restoration SOPs, notice templates, review procedures, payment-plan eligibility, and medical-hardship policies.
- Communications among billing, Public Works, Code Enforcement, manager's office, and retained counsel concerning the plaintiffs' property and decisions. Limit date ranges and identify specific episodes to control burden.

Priority 2: The third-party payment and restoration conditions

- Check receipt, scanned front/back where releasable, remittance advice, accounting entries, suspense-account records, return authorization, correspondence with the sender, and account-allocation rules.
- Communications mentioning the alleged third-party broker; disclose the exact name variants and dates from the original correspondence rather than relying only on a search term.
- November 2025 restoration instructions, inspection/flush reports, risk assessments, proposed waivers, and nonprivileged operational messages. Attorney involvement does not establish that every record is either privileged or unprivileged; request identification of the basis for each withholding.

Priority 3: Disability requests and authority

- Original accommodation requests and denials; routing, assignments, escalation, grievance and appeal records; alternative filing options; case-specific safety assessments and considered alternatives.
- ADA policy and website version history, training materials and attendance, coordinator delegations, and historical final-review authority.
- Applicable court accommodation procedures and the actual hearing/continuance record. Court decisions require separate analysis from administrative utility decisions.

Priority 4: Comparators and institutional notice

- Initially request a de-identified or minimally identifying export: initiation date/type, alleged violation, water status, compliance deadline/extensions, assistance offered, fines, abatement, placarding, liens, appeals, and disposition.
- Narrow full-case requests to comparable residential water/occupancy cases and the named Promenade leads. Do not indiscriminately seek residents' private medical details.
- Obtain approved June 10, 2025 minutes and video; follow-up sidewalk assistance recommendations; the February 2026 utility-review presentation and subsequent amendments; signed resolutions and adoption history.
- Federal financing and civil-rights assurances for the relevant recipient/program.

7. Accuracy checks on the supplied attachment

These are calculations and document-context checks, not independent verification of the allegations.

- June 25, 2024 to November 16, 2025 is **509 elapsed days**, or **510 calendar dates counted inclusively**. Use the inclusive formulation consistently; precise duration requires actual shutoff/restoration times.
- Two $300-per-day citations over 89 days equal **$53,400**, not $54,600. Two such citations over 91 days equal $54,600. Reconcile the judgment's count dates and any additional components rather than guessing why it differs.
- The initial complaint describes installation on July 8; the amendment describes authorization July 8 and completion July 10. That may be a legitimate distinction. Use the work-order audit trail to resolve it.
- The initial complaint gives March 24, 2024 for one tort notice, while other portions give March 24, 2025. Verify the served document and receipt before asserting a chronology.
- The provided September 14, 2026 screening order focuses on Rule 8 and calls for a short, direct account of each defendant's acts and causal harm. A broad political research memorandum should not simply be pasted into a pleading. The attachment's October 5 amendment date does not independently verify filing, acceptance, or current docket status.

8. Archive limitations and completion status

Laserfiche's root displayed 13 departmental folders. City Recorder exposed meeting records, ordinances, resolutions, contracts, and newsletters. Its Commission archive displayed 7,633 entries, starting with nineteenth-century records. The public City Manager and Code Enforcement folders returned no visible entries. General searches and sorting attempts did not produce a reliable policy-results list; these technical outcomes are not a finding of record destruction or nonexistent policies. [S6]

CivicClerk full-text search located substantive material and migrated 2024 packets, but results were lazy-loaded, and date-filter behavior was inconsistent. Results for future meetings were excluded from substantive findings. A Matheson search returned no events; an Eriksson search returned a March 2026 planning-application match, which was not verified as referring to the plaintiff and is not treated as corroboration.

Coverage still needed: late-2023 packets; a systematic 2024–2026 meeting inventory; current and historical fee schedules; signed code changes and delegations; budgets and actual code-enforcement revenue; applicable training records; the

named plaintiffs' case documents; comparator files; and meeting-video review with timestamps. No sworn testimony, party response, or litigation discovery was obtained.

9. Source register

Sources were accessed October 10, 2026. Official packet download endpoints are preserved below in monospaced form for reproducibility. Local originals and page-preserving extracts accompany this report. No source should be described as an authenticated litigation exhibit merely because it was downloaded from an official portal.

S1 — February 10, 2026 Commission work-session packet, CivicClerk event 3240, file 8700, 63 pages. Relevant pp. 20–27. Memorandum dated February 3, 2026.

https://oregoncityor.portal.civicclerk.com/event/3240/overview

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=8700,plainText=false)

S2 — August 19, 2026 Commission regular-meeting packet, CivicClerk event 3210, file 9232, 225 pages. Relevant pp. 27–62 (ADA); 80–85 (WIFIA); 173–175 (June 10, 2025 draft minutes). Draft/unsigned status must be distinguished from adoption.

https://oregoncityor.portal.civicclerk.com/event/3210/overview

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=9232,plainText=false)

S3 — July 17, 2024 Commission regular-meeting revised packet, CivicClerk event 30, file 3654, 93 pages. Relevant pp. 3, 16, 28, 48–49.

https://oregoncityor.portal.civicclerk.com/event/30/overview

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=3654,plainText=false)

S4 — May 15, 2024 Commission regular-meeting revised packet, CivicClerk event 2236, file 5739, 282 pages. Relevant pp. 46–53, Item 7d.

https://oregoncityor.portal.civicclerk.com/event/2236/overview

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=5739,plainText=false)

S5 — Current City ADA Grievance webpage, publication/effective date not established.

https://www.orcity.org/3459/ADA-Grievance

S6 — Official Laserfiche repository, repository r-5a2dbf36. Root; City Manager folder 400951; Code Enforcement folder 406363; City Recorder folder 859; Public Meeting Records folder 400786; City Commission folder 2012. Public visibility does not imply completeness.

https://portal.laserfiche.com/Portal/Welcome.aspx?repo=r-5a2dbf36

https://portal.laserfiche.com/Portal/Browse.aspx?id=2012&repo=r-5a2dbf36

L1–L4 — Ninth Circuit official Model Civil Jury Instructions 9.5–9.8, policy/custom, final policymaker, ratification, and failure to train. Reviewed with commentary; instructions are explanatory authority, not a substitute for case-specific briefing.

https://www3.ce9.uscourts.gov/jury-instructions/node/142

https://www3.ce9.uscourts.gov/jury-instructions/node/143

https://www3.ce9.uscourts.gov/jury-instructions/node/145

https://www3.ce9.uscourts.gov/jury-instructions/node/146

10. Recommended use

Start with the February 2026 utility review, the historical policies it identifies, and the actual notice/decision records in the plaintiffs' case. Use the Promenade minutes and institutional adjustment as disciplined comparator leads, not accusations of favoritism. Use the ADA materials to test implementation and chronology, not to infer that present policy existed throughout the dispute. Keep the political narrative separate from the specific factual and causal showing the supplied screening order asks for.

The most defensible current conclusion is that **Oregon City's own documents identify procedural inconsistency and meaningful administrative discretion that warrant focused investigation**. A finding of unconstitutional municipal policy, deliberate indifference, or political bad faith remains to be established.